

# INTRODUCTION

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We begin our updated critique of the American family court system by acknowledging that, notwithstanding the fact that mothers are often placed at risk of incarceration, fines, and losing all contact with their children in retaliation for requesting the family courts to shield their children from abuse committed by the other parent, there are still measured successes in this uphill battle to reform the family courts. Such successes give us reason for hope. By elucidating the problems prevalently found in the family court system, we see evidence of steady efforts to effect change. For those who have become aware of the troubling patterns of family court dysfunction, it becomes increasingly hard for them to accept the dismal status quo.

@Pr2

Most notably, a cadre of reformers have set the wheels in motion for course-correcting a system that has careened out of control in those—all too frequent—instances in which family court decisions are putatively and provably contraindicated to the safety and well-being of abused children. Taking a balanced approach, we acknowledge the fact that there are many good judges who zealously protect children from harm. However, there are many who do not. And too many children in custody matters are thus falling through the cracks.

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Among those who have had a significant effect on improving the family court and child welfare system is Dr. Jeffrey L. Edleson, whose noteworthy contributions will be discussed at length in the addendum to === page xxxiii === the third section of this book. Specifically, Dr. Edleson, in collaboration with his colleague, Susan Schechter, authored a comprehensive guide for court professionals and child advocates in protecting the welfare and safety of children. Their seminal book, *Effective Intervention in Domestic Violence and Child Maltreatment: Guidelines for Policy and Practice* 1 — better known as the “Greenbook” (after the color of its cover)—whose focus is “to present leaders of communities and institutions with a context-setting tool to develop public policy aimed at keeping families safe and stable,” 2 has effectively spawned an impressive body of literature based on its comprehensive and cogent recommendations for guiding professionals in working with battered women and abused children.

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Although first written in 1999, a concrete example of the effects of the Greenbook in improving child safety can be found twenty years later in a 2019 journal article. In “Advocacy Perspectives on the Greenbook,” Lucy Salcido Carter explained that “[w]hen domestic violence is an issue in the case, it is important not to have [issued] an automatic finding of failure to protect against the non-offending parent [the mother], but instead to recognize that abuse is happening to the adult victim and that the perpetrator is exposing the child to the domestic violence.” 3

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Similar to the Greenbook’s introduction of helpful policies and practices in protecting children, on the clinical front some noteworthy advances have been made that deserve pointing out. Most notable, eminent neuropsychologist and family counseling expert Dr. Robert (Bob) Geffner spearheads a unique continuing education training program for clinicians that introduces advanced research and clinical methods for assessing and treating intrafamilial abuse and trauma. Founder of the Institute on Violence, Abuse and Trauma, (IVAT), under Geffner’s stewardship thousands of therapists have received training in abuse and trauma intervention since its inception in 1984. With a focus on educating the mental health profession to the traumatic effects on children judicially ordered into the custody of the sexually abusive parent, Geffner has paved the way for children and adult survivors to receive the trauma intervention therapy to heal from unrelenting exposure to ongoing assault. His work has resonated throughout the mental health profession and has established a new standard.

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=== page xxxiv === All in all, dedicated researchers and clinicians have taught us that it requires patience and forbearance to rehabilitate a system that has become woefully tainted by inimical prejudices and bad practices. We hope this painstakingly candid critique of the family court system will motivate, inspire, and galvanize change in how judges approach the complexity of custody decisions when there are credible charges of child sexual abuse leveled against the other parent—so that tendentious mental health theories interlaced with gender, racial, ethnic, and social class biases do not inform ill-fated family court rulings.

@Pr7

We must also bear in mind that it is imperative to enlarge our army of family court reformers, lest our successes remain limited and isolated at best. While acknowledging the small but measurable successes in enlightening judges and others to the pitfalls of system biases that severely compromise a child’s welfare and safety, we don’t deny the extant horrors either. In case after case, the evidence shows the system maniacally works against mothers and throws abused children into a culvert of despair. In fact, a common phrase heard today by mothers caught in family court litigation is that they feel beleaguered by a “trial by ambush.” They are referring to the unrelenting onslaught of legal attacks—cacophonous winds of frivolous legal filings—which all too often entail the Attorney for the Child (AFC) and Child Protective Services (CPS) who, in concert with the abusive parent, target the mother without pause. Sadly, these horrific family court cases are all too common—they are neither anomalies nor aberrations. In fact, the intensity of the persecution of mothers in the family courts and child welfare system is seen even more so among Black, Indigenous, People of Color (BIPOC) populations, who have the added burden of contending with the race factor in addition to the systemic biases and failures of the family court system.

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For these reasons, we offer a second edition of *From Madness to Mutiny* in the hope that it will stimulate purposeful and productive discourse in both the classrooms that breed the next generation of lawyers, judges, social workers, and guardians ad litem, and in the clinical setting wherein everyday matters of domestic violence and child abuse become evident. Sociologists, psychologists, feminists, policy makers, === page xxxv === and others must be enlightened to the scourge of gender bias that has entrapped far too many mothers in the family courts. Those mothers suffer the anguish of seeing their children harmed; many are subsequently expunged from their children's lives or restricted to minimal contact with them. We must extirpate this malady at its roots. This was the purpose of the first edition of our book, and likewise the warrant for the second.

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## FAMILY COURT CUSTODY CRISIS OF EPIC PROPORTION

### United Nations Addresses Family Courts' Pervasive Gender-Bias and the "Double" Victimization of Women and Children as a Global Human Rights Crisis

In the fall of 2022, the United Nations Human Rights Office of the High Commissioner issued a "Call for Inputs—Custody Cases, Violence against Women and Violence against Children," which was a broad alert to academic institutions, international organizations, and governmental agencies to supply data on the gravity of abuses perpetrated against women and children caught in the family courts worldwide.

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Pointing to family courts' tendency to dismiss evidence of domestic violence and child abuse in custody cases, the Call for Inputs asserted that many women who are victims of violence and whose children have been abused by the father will "face double victimization as they are punished for alleging abuse," and by "losing custody" of their children "or at times being imprisoned." Identifying what is at the crux of these disastrous custody decisions, the UN Office of the High Commissioner pointed to family courts' widespread reliance upon concepts such as "parental alienation" (in which a parent, usually the mother, is blamed, albeit unfairly, for any hostility shown by an abused child toward its father, whom the child had already identified as their abuser). They pointed out that though "these concepts lack a universal clinical or scientific definition," they are widely accepted in the family courts as the justification for stripping a mother of custody of her child.

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=== page xxxvi === Driving this major UN Human Rights project was a need "to examine the ways in which family courts in different world regions refer to parental alienation, or similar concepts, in custody cases and how this may lead to double victimization of victims of domestic violence or abuse" and "to document the many ways in which family courts ignore the history and existence of domestic . . . violence and [child] abuse in the context of custody cases" while studying "their grave consequences [to] mothers and their children."

@Pr12

Furthermore, the Human Rights Office of the High Commissioner points out that one of the goals of their international study is to learn more about "any intersecting elements such as age, sex, gender, race, ethnicity, legal residence, religious or political belief" that result in poor case outcome for women and children. They stated the overall purpose of their study is to "draw attention to the scale and manifestation" of the double victimization of women and children when courts across "many countries, spanning all regions of the world" discredit mothers' pleas to protect their children from abuse and to "offer recommendations for States and other stakeholders to address the situation." 4

@Pr13

The UN study offered hope to women's groups across the globe. In the United States, The Women's Coalition—a well-organized group of mothers and advocates devoted to collectively raising awareness about the custody crisis—was exultant about the project. The group's founder, San Diego-based Cindy Dumas, a PhD candidate in psychology whose career was aborted when she became a victim of the family court and was forced to go on the run with her children, posted the following on her website:

"This is the first time a mechanism of the UN HRC has prioritized this issue and initiated an inquiry. It is a leap forward in our efforts to get it officially recognized as a human rights violation. The Women's Coalition has previously submitted three petitions, which have likely contributed to them initiating this inquiry."5

Shortly after the UN's announcement of their "Call for Inputs," a questionnaire was sent out to protective mothers by The Women's Coalition. === page xxxvii === Within the first week or so, Dumas would receive nearly four hundred completed questionnaires from mothers who lost their children to a unsympathetic family court system, many of whom lost visitation privileges with their children and, sadly, remain permanently estranged from them. Her questionnaire covered all the component parts of the family court system that contribute to the reprehensible rulings against mothers. But even more so, it captured the deleterious effects on children forced to live with an abusive father where they have become so inexorably brainwashed against their mother that reconciliation becomes impossible.

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By early summer 2023, the UN's Human Rights Office of the High Commissioner would produce a conclusive report on its findings. In the press release accompanying their report, they used an alarming heading: "Urgent reforms needed to protect woman and children from violence in custody battles: UN expert." They began with a condemnation of the family courts: "Deeply embedded gender bias that pervades family court systems across the globe is placing women and children

in situations of immense suffering and violence, a UN expert said today.” 6

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UN Special Rapporteur, Reem Alsalem, who conducted the study, went on to state “the tendency of family courts to dismiss the history of domestic violence and abuse in custody cases, especially where mothers and/or children have brought forward credible allegations of domestic abuse, including coercive control, physical or sexual abuse is unacceptable.” Perhaps most telling was Alsalem’s sounding the alarm about the effects of a failed family court system on BIPOC mothers: “The report underscores that minority women face additional barriers when being charged of [sic] using ‘parental alienation’ in part due to increased barriers in accessing justice as well as negative stereotypes.” 7

@Pr16

## Inside the Torture Chambers of the Family Courts: Forced Weaning of Young Infants to Accommodate Overnight Visits to the Abusive Father

In recent years, family courts have been removing very young children, including nursing infants, from mothers with much greater frequency === page xxxviii === than they had in the past. In truth, we did study cases where infants were removed from protective mothers when we conducted research for the first edition. However, today the family courts are found to strip mothers of toddlers and infants much more often than they did twenty years ago. In fact, in preparation for transferring custody of an infant to the father, the court sets a plan into action by first ordering the infant to go on extensive overnight visitations (three to four times a week) and weekend visits with the father as preparation for the transfer of custody to the father. To comply, the nursing mother must use a pump to express her milk so that their infant can be sent over to the father with the mother’s milk supplied.

@Pr17

Such an arrangement is certainly not without hazards. Mothers, for example, in all kinds of inclement weather, can be seen bundling up their nursing infants, accompanied by bottles of pumped/expressed breast milk, as they deliver their babies to the sexually abusive father on the average of three to four nights a week and on weekends as well. Given the reality that many nursing infants often cannot adjust that easily to expressed milk (or formula), they consequently go hungry because they are used to taking nourishment from their mother’s breast and not from a bottle. And, sometimes, when their nursing infants are returned to them from an overnight or weekend visit with the father, the mothers will notice that their baby’s diaper will show streaks of blood. That is caused by the infant’s dehydration resulting from their refusal to take expressed milk or formula, both of which are delivered in the form of a bottle as opposed to the breast.

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Mothers caught in this bind will often prematurely wean their infant from breastmilk altogether so that the baby will get used to bottled milk when court-ordered to go to the abusive father for overnights and weekends. While this prevents dehydration because the baby has now been weaned (albeit prematurely) and can therefore take milk from a bottle, such premature weaning is in direct contravention to the health guidelines of today. Both the World Health Organization (WHO) and the American Academy of Pediatrics recommend breast feeding of an infant for at least one year, and ideally for two to two-and-a-half years. Breastfeeding inures to the benefit of the baby both emotionally and physically by strengthening its immune system to fight off disease, === page xxxix === improving its growth and development, and fostering a healthy maternal-child bond.

@Pr19

In the winter of 2023, a Virginia mother made headlines news when the judge forced her to wean her four-month-old infant so that the infant’s father could have extensive visitation with the child, even though he had abandoned the mother during her pregnancy. 8 The Washington Post, which broke the story, set off a firestorm when the fathers’ rights activists falsely claimed the mother was using breastfeeding as a “weapon against visitation.” One of the authors of this book (Amy Neustein) spoke to the mother at length and learned of her Sisyphean struggle against a court system that directed asperities at her, freely accusing her of being “uncooperative.” The facts placed on the record clearly belied these freewheeling accusations launched at the mother, who did everything in her power to encourage the father’s participation in the life of the child. In fact, she pleaded with him to allow her to breastfeed her infant by making arrangements for him to come over to her home for many hours so that she could nurse the baby while he would visit. The court found that unacceptable and ordered the mother to express her milk and send the baby off to be with the father for long stretches of time.

@Pr20

Concerned about the mistreatment of this lactating mother, Neustein—together with author Michelle Etlin—wrote a letter to The Washington Post. The paper published their letter under the heading “Infants are being penalized in the name of ‘men’s rights.’” Their letter begins with a sad but true commentary: “This story is all too familiar to those who study the family court system. For the past four decades, we have researched how U.S. domestic relations courts . . . have cruelly and senselessly torn infants and children from their mothers.” 9

@Pr21

## Another Instance of Violence against Women: Jailing of Mothers on Untenable Grounds

Among the other hardships we have seen in recent years imposed by courts is the upsurge in jailing of mothers for nonsensical reasons, even === page xl === at the cost of their health. A protective mother in Maryland, for example, was going into insulin shock and was therefore unable to pay attention to the judge’s questions. The judge became furious and threw her into jail for the day. A Westchester County, New York, mother was thrown in jail because she came late

for her court hearing, while having driven across town in bumper-to-bumper traffic.

@Pr22

Mothers, even if not jailed, have in recent years been threatened with incarceration for talking to their own supportive family members about their family court proceedings, even if the family members will never need to serve as witnesses either for the mother or as “hostile” witnesses, called by the other side. Enjoining a desperate mother from seeking moral support from her own family members causes her to feel isolated, demoralized, and browbeaten. Some mothers become suicidal, while others have succeeded in taking their own lives.

@Pr23

## Ending Institutional Violence against Mothers and Children

Using the power of the family courts to punitively strip mothers of custody of their children, to force adverse premature weaning of infants from their mother’s breastmilk, and to jail mothers for no reason at all signifies a reprehensible human rights crisis and flagrant violations of constitutional, statutory, and case law. The senseless infliction of “institutional violence” upon unsuspecting women and children demands a thorough investigation by the United States Attorney General. And this, in fact, may be more doable than we think.

@Pr24

Legal scholar and first champion of the protective mother, Jeremiah B. McKenna, to whom we have dedicated this book, researched the apposite federal statutes to permit a Justice Department investigation into family courts and their collaborating auxiliaries (Child Protective Services, law guardians, 10 visitation centers, etc.). Neustein’s thirty-one-page memorandum to United States Attorney General Merrick Garland, referenced in this book, is premised on those federal statutes researched by McKenna, which give jurisdictional authority to federal prosecutors to open up an investigation nationwide—addressing === page xli === first and foremost the counties where the most troubling cases tend to cluster. 11 In essence, what a federal prosecution affords is immediate relief. It signals to the courts that its corrupt practices—where evidence is deliberately suppressed; records are falsified; and mothers, and even more so women of color, are threatened, blackmailed, coerced, and worse—must all come to an end lest the judges and their accomplices (law guardians, court-appointed mental health experts, child protective service agencies, and visitation supervisors) find themselves someday in the same wretched position as the mothers that have come before them.

@Pr25

Accordingly, if judges and their auxiliaries are successfully prosecuted for organizing, fostering, and facilitating a racket (as will be described in painstaking detail) this will restore balance and fairness to the family court system—a state of natural homeostasis reached after a purging of all its rottenness. In fact, we may never go back to the family court paradigm for handling child custody in the first place. It may, given its deep-seated venality, become defunct altogether, to be replaced by a panel of concerned professionals who are not driven by any agenda other than protecting the mother-child bond and shielding the child from predatory harm, sans the biases that imperil the family courts today.

@Pr26

We will then have in place of a corrupt family court a true “King Solomon Court.” And the rampant institutional violence against women suffusing the domestic court system today shall exist no longer.

@Pr27

## PROTECTIVE MOTHER MOVEMENT — THEN AND NOW

### Protective Mother Movement Makes Great Strides in Recent Years

In the nearly two decades since the publication of the first edition of this book—which showed how courts consistently punish mothers with the loss of custody of their children when they make good faith allegations of sex abuse against the child’s father—we have witnessed a burgeoning of a social movement to reform the family courts, in part due to the elaborate networking offered by social media and, more recently, by Zoom === page xlii === meetings that bring together protective mothers across the country for an informal virtual “get together.” There are now scores of trusted websites (and blogs) posting the latest research studies, news articles, and video and YouTube recordings, all available to mothers who have lost their children to the family courts.

@Pr28

Hence, no mother is fighting alone today—isolated in her despair—for she can now readily avail herself of the multitude of websites, where some even provide referrals to family law attorneys, expert witnesses, or give advice on legal strategizing to win back custody of children. Some propose specific legislative reforms to improve the functioning of the family courts while others propose a jettisoning of the existing court system altogether, to be replaced by a more humane structure for determining children’s best interests. Regardless of their approach, the mantra of all these sites—National Safe Parents Organization, 12 Mothers ReVolution, 13 Custody Peace, 14 The Women’s Coalition, 15 Safe Kids International, 16 One Mom’s Battle, 17 The Leadership Council, 18 and California Protective Parents Association, 19 just to name a few—is to raise public awareness about the catastrophically high numbers of mothers losing custody to abusive ex-partners or spouses.

@Pr29

The term “protective mother”—which has become a part of the vernacular of family law practitioners and women’s groups across the country—was coined around 1986 by mental health professionals who had formed the American Profes-

sional Society on the Abuse of Children (APSAC). It refers to a mother who mounts a fervent struggle to protect her child from all forms of abuse, particularly sexual abuse, committed by the father, in a hostile family court system intent on beating her down every step of the way. And part of that struggle for the protective mother, in addition to mounting a strong defense in her own case, is her engagement in organizing, assembling, and protesting these inequities as a collective issue. Some of those activities have included participation in peaceful demonstrations in front of state capitals around the country as well as at the nation's capital. Avid letter-writing/e-mail campaigns, petitions, and social media posting/likes have served as another way of voicing one's concerns about the crisis in the family courts. All in all, a five-minute Google search of the protective parent/family court issue === page xliii === will provide an excellent gauge of the rhythm and beat of this growing social movement.

## Plight of Protective Mothers Heeded in Academic Settings

@Pr30

The protective mother issue now resonates in the halls of the universities, whereas two decades ago when the first edition of this book was being prepared for publication there had only been sporadic interest at the universities in this topic. For example, one of the authors was invited in the fall of 1990 to lecture at the Women's Law Forum at Rutgers State University School of Law 20 only because the professor organizing this effort, H. Joan Pennington, was a remarkable activist and visionary, having founded the National Center for Protective Parents, Inc., as a legal resource for mothers caught in hostile family court litigation. But such efforts to bring this subject to undergraduate and graduate classrooms have been rare.

@Pr31

Today, the Battered Mothers Custody Conference, co-chaired by Professor Mo Therese Hannah, is held annually at Siena College in Albany, New York, where Professor Hannah serves as a full professor of psychology. Her conference has grown exponentially since its inception in 2004; it now serves as the premier nexus for the protective mother movement. More recently, the California Protective Parent Association has partnered with the University of California Irvine (UCI) Initiative to End Family Violence; and in so doing, this grass roots parents' group has joined a major academic institution to collaborate on an annual, full-day, accredited continuing legal education symposia (although at present, held virtually), which had started in fall 2021. The conference, titled "Forward Together: Multidisciplinary Perspectives on Protecting Children from Abuse," 21 had a panel of speakers consisting of several activists who addressed the colossal mistreatment of mothers in the family court system. This points to a sea change in attitude.

@Pr32

That is, whereas mothers' disenfranchisement in the family courts—which had at one time been solely the province of activists—had now entered mainstream institutions for discussion and debate. And as === page xlv === previously discussed, the discourse on this topic was not a flash in the pan; instead, it would become a regularly occurring annual event. This is a marked change from 2005 when the first edition came out. Back then, one of the authors had been invited to serve as visiting faculty at the Tristate Family Law Conference held by the National Judicial College in Bretton Woods, New Hampshire. 22 The attendees at the conference, and the conference organizer herself, looked upon this subject as novel, but no less worthwhile to explore. This represented a healthy discourse on family courts' betrayal of women and children inside the protected corridors of a judicial education institution, although back then such a forum was more or less an isolated event.

@Pr33

As the years moved forward, and as academic institutions began to show a continuing and steadfast interest in the atrocities of family court, George Washington University Law School would become another very important venue for broadcasting these profound injustices toward mothers who tried to protect their children from abuse. George Washington University Law School Clinical Law Professor, Joan S. Meier, became the Founding Director of the National Family Violence Law Center (NFVLC) situated at George Washington University Law School. The Center's function is to use "empirical research, policy development, and collaborative advocacy to educate professionals, the media, and the public, and to advance critical legal reforms and systemic change in courts' responses to families with a history of abuse." 23

@Pr34

In fall 2021, Family and Intimate Partner Violence Quarterly published a study, titled "Protective Mothers, Endangered Children," spearheaded by California State University at San Bernardino professor Geraldine Butts Stahly together with two highly respected activist organizations, the California Protective Parents Association and Child Abuse Solutions, Inc. The data collected for this study came from a hard-copy questionnaire, consisting of 101 questions, which had been distributed at national and international conferences concerning domestic violence and child abuse. The purpose of this study was to learn about the "experience of mothers attempting to protect their children from abuse." 24 The authors of this study were so terribly alarmed by the results began === page xlv === to circulate its findings (399 mothers from across the country had filled out the questionnaire) at multiple workshops and poster sessions ahead of its publication as they felt an urgency to alert professionals to the serious failures of the family courts.

@Pr35

Specifically, the study authors witnessed repetitive patterns of mothers losing custody and children being placed at significant risk of harm by the other parent, although the rates of such system failure were a bit higher in California, where mothers had been found to lose custody of their children to identified abusers 85.4 percent of the time as compared to 74.6 percent in other states respectively. The study authors asked for an overhaul of every facet of the system—custody evaluators, mediators, judges, child welfare services, attorneys for children, state law enforcement—including setting up

“a citizen review ‘second look’ commission . . . at the state and federal level to review cases in which children are currently at risk, with the power to intervene [in order] to protect [children].” The study concluded with an exhortation for “[i]mmediate and effective changes [that] must be made to law, policy and procedure to provide safety for children of divorce and separation.” 25

## Protective Mothers Finally Find a Sympathetic Ear in the Mass Media

@Pr36

On the media front, likewise, we have witnessed significant progress in addressing the protective mother issue since we first wrote about it in 2005. Those changes in the news media’s posture deserve mention. To wit, in the early days of the protective mother movement, the media coverage was sporadic at best. But even more troubling was the fact that it was so unpredictable at times, often prejudicial to the mother.

@Pr37

As a result, many mothers were “duped” when reporters assured them the hard news coverage or feature story would be in their favor, only to learn (sadly, the hard way) that there was an ostensibly robust fathers’ rights agenda massaging the news industry at that time. It was, therefore, not uncommon to see protective mothers totally flummoxed when, after telling their heart-wrenching stories to the press (sometimes working with the reporter for many months as these stories can be very complicated), they would find that the news coverage (both print and broadcast) of their tragic saga had portrayed them in a terribly unflattering light. In contrast, their ex-husbands or ex-partners, and certainly the father’s advocates, such as the fathers’ rights organizations, were all made to look respectable and credible when the facts of the case would significantly prove otherwise.

@Pr38

More often than not, the copious documentation supplied by the mothers to prove their innocence had no effect on the outcome of the news media story. It was therefore not uncommon to see mothers drawn and quartered by a media world that luxuriated in suffocating the truth. Thankfully, that horrid reality has changed. Hence, in the years since the publication of the first edition, we have seen media deliver more reliable news reports, rather than habitually revert to myths, factoids, and far-fetched prejudices aimed at excoriating protective mothers for no reason at all.

@Pr39

For example, in 2016, investigative journalist Laurie Udesky, working for 100Reporters, a nonprofit news organization giving a platform for freelance journalists writing about corruption and social injustices, had a feature story appear on the tragic travesties of justice in the family courts. Her article was titled “Custody in crisis: How family courts nationwide put children in danger.” 26 A year later she would be given the Excellence in Journalism Awards, from the Society of Professional Journalists, Northern California Chapter, for her work in exposing the ill-fated decisions of family courts that place children in harm’s way.

@Pr40

In 2019, The Washington Post would write a feature story on the abject plight of mothers punished with the loss of custody when they try to protect their children from abuse perpetrated by the other parent. The article, aptly titled “A gendered trap,” would quote Meier, who found a pattern of judges repeatedly placing children with the abusive parent: “Meier called the pattern a ‘complete betrayal of the mission’ of the courts, which are supposed to prioritize the welfare of children.” 27

@Pr41

What prompted that prominent news coverage in The Washington Post was Meier’s large-scale study that found that “mothers who report abuse—particularly child abuse—are losing child custody at staggering rates.” In fact, the study showed that in over 73 percent of the time when mothers alleged abuse, and the other parent cross-claimed “parental alienation” (the notion that when a child refuses to have a relationship with a parent it is due to purported “manipulation” by the other parent), the family court judges will switch custody to the alleged abuser. 28 The Meier study, as a matter of fact, was able to hold up admirably to specious attempts made by two critics—with a clear agenda—seeking to negate these significant study findings.

@Pr42

Namely, in 2022, the Journal of Family Trauma, Child Custody, and Child Development (formerly the Journal of Child Custody) published a strong and persuasive commentary by Meier and colleagues that pointed out that opponents of her study (although only two and certainly not a huge number) had based their criticism on “incorrect speculations and misstatements about [their] methodology” and that any possible “methodological flaws” that may have “legitimately cast doubt on the validity of the FCO [Family Court Outcome] study’s findings have not, to date, been identified.” In responding to her critics, Meier and her co-authors put this matter finally to rest by showing the “lack of substance” to their critics’ findings “while substantiating the credibility” of their assiduous research of family court custody (case outcome when parental alienation is raised to discredit the mother. 29

@Pr43

In her successful rebuttal of her critics’ fallacious arguments, Meier preserved the important contributions of her study and, no less, the eye-opening lead story in The Washington Post. This was crucial, as any progress made in getting exposure for the protective mother issue in a major outlet, such as The Washington Post, might have been reversed if the critics of her study went unanswered. What we see here is that the deeply rooted gender biases casting aspersions on the credibility of mothers cannot be left unchallenged in either the professional circles 30 or in the mass media. As for the latter, because it is axiomatic that public opinion drives policy makers and legislators, it is imperative to have media coverage supportive of protective mothers instead of working against them.

@Pr44 While the 2019 Washington Post article still remains the most highly cited news story, today about the undeserved backlash against mothers === page xlviii === who in good faith report child sexual abuse to the courts, a handful of mainstream media venues have, in subsequent years, reported on this topic as well. For example, in May 2021, NBC aired a two-part series on children who were murdered by their fathers during unsupervised contact with their children. Pointing to the lack of judicial oversight or accountability, child advocates who were interviewed for this NBC series urged for an overhaul of the court system, including the passage of laws that would compel courts to consider abuse evidence—both present and past—when making custody/visitation decisions so as to ensure children are protected from violence and abuse and, in the most extreme case, death. 31

@Pr45 Two years later, in 2023, New Hampshire investigative journalist and author Olivia Gentile wrote an outstanding feature-length story for Insider on how the discredited “Parental Alienation” theories have contaminated the American family courts, causing abused children to be confined to the custody of their abuser with little or no access to their mother, who strenuously tried to protect them. Giving as example a San Diego case, Gentile showed how a mother lost custody of her children after her son’s therapist reported to the court how the twelve-year-old boy was forcibly coerced by the father to perform lewd acts that the child described as “disgusting.” In her reporting on this story, Gentile showed that several years after the mother lost custody of her three children to their abusive father, the mother would serendipitously find in a cloud storage account she had once shared with her ex-husband, numerous sexually explicit images (both video and still shots) the father had taken of the children after he obtained custody of them. 32

@Pr46 The effects of the sympathetic journalists resonated with the mothers. In our interviews with women who had conversations with reporters, we found that journalists like Gentile were deeply appreciated by the protective mothers. What we heard was that she gave generously of her time to distressed mothers, often answering their e-mails—albeit at late hours of the night, and on weekends and holidays, too. Notably these reporters were not feminist writers with a long history of championing women’s causes; instead, they were sensitive and caring journalists === page xlix === who witnessed an injustice meted out to protective mothers and applied their journalistic skills to bring these family court travesties to light.

## @Pr47 Feminist Writers and Researchers Come Together to Champion the Plight of Protective Mothers to a Broader Audience, Outside of the Traditional Feminist News Outlets

This past decade would prove to be historic for broadcasting the protective mother issue to a wider readership. Whereas in the early days, namely the 1980s, 1990s, and early 2000s, it was mainly feminist newsletters and magazines that had profiled the wretched fate of mothers peregrinating through the family court and child welfare system, today one can find discussion of these critical issues in venues outside the feminist media. And the researchers who have labored to study this problem have much to do with the progress in that regard.

@Pr48 For example, Providence Journal columnist Anne Grant, who is the former executive director of the Women’s Center of Rhode Island, has paid much attention to the gender biases pervasive in the family courts in her writings on social inequities and unbalanced power across various sectors of society. The Providence Journal is certainly not a feminist publication as it is a general-purpose newspaper widely read in the New England area. In her Amazon review of former senior social science analyst at the National Institute of Justice Leora Rosen’s book, *Beyond the Hostage Child: Toward Empowering Protective Parents*, 33 Anne would write:

“This book holds validation for those who have been traumatized when courts removed terrified children from protective parents and gave them to the sole custody of abusers. Dr. Rosen shines a light we need to go forward. She asserts that alleged crimes of domestic violence and child sexual abuse within the family should never be sent to civil courts that are designed for compromise. She briefly describes five === page l === proposed models for change and offers more detail on a sixth, composite model, Child At Risk Classification Office (CARCO) that focuses on a public health assessment of the child’s risk of being exposed to violence or abuse. She uses the acronym TRIAL to represent key elements of CARCO: Training, Reporting, Investigation, Adjudication, and Long-term planning—that are woefully absent from the present practice of adversarial litigation in family court.”

Grant concludes with plaudits for the author’s vision, dedication, and commonsense approach to the protective mother debacle:

“Dr. Rosen has performed a huge service by focusing on those of us who feel numbed by our own inability to protect desperate children and non-offending parents from the lies of lawyers and psychologists who have reduced them to a profit center. She [the author] concludes by urging Congress to use its authority and enact CARCO for the District of Columbia, creating a model for the nation. Federal funding incentives can be redirected to inspire other states to follow suit and to end the nightmare that breeds child abuse at family court.” 34

## @Pr49 Protective Mother Issue Gains Stardom in TV Miniseries now Streamed on Hulu

The media coverage of the protective mother’s plight would mushroom in recent years and prove worthy of a Disney Channel platform. By summer 2022, FX would air a five-part docuseries, “Children of the Underground,” which would

be subsequently streamed onto Hulu, where it remains to date. The Emmy Award-winning production company, Story Syndicate, had diligently put over three years into the research and production of this spellbinding television miniseries. Executive Producer Ted Gesing would contact us in the fall of 2019, after reading the first edition of this book, nonplused and horrified that the family courts had descended into such a state of damnation. The documentary convincingly showed the angst of mothers and the cruelties of the family court system that oppress mothers to the point where many had no choice but to take their children and go on the run—and suffer poverty, lack of medical care, isolation, food deprivation, and chronic stress as a result.

@Pr50 This docuseries on the protective mother issue received good reviews in a number of different media venues: New York Post, The Daily Beast, A&E’s True Crime Blog, and Indiewire, just to name a few. It was praised on [www.rogerebert.com](http://www.rogerebert.com) for “captur[ing] the growing pains of understanding mental health, which includes the people and children who were mishandled in the [court] process . . . [and is] all the more sobering when one realizes how certain parts of the family court have not changed, or that the same problems can arise.” 35

@Pr51 Yet, some protective mothers and advocates had mixed feelings about the docuseries. They did not take issue with its content. On the contrary, they found this docuseries—in which mothers and (now) grown children had so poignantly and persuasively bared their souls—very compelling. However, they had thought the gravity of the injustice and eloquence in the way the story had been told would finally catapult this issue to the front burner. That is, they perceived the series as mainly catalytic in stirring public outrage over the shameful abuses of the family courts and they wondered why that hadn’t happened.

@Pr52 However, looking at this situation more objectively, who can say that the docuseries won’t have that effect; perhaps if not today, then tomorrow? As with any social movement, the exact point of critical mass is hard to predict and, similarly, just as hard to identify when it actually does occur. In fact, it seems that historians are much better able to time-stamp critical developments in any political or social movement than those living through that epoch. For this reason, it would be foolhardy to throw in the towel just because the walls of Jericho didn’t come tumbling down in the wake of the docuseries. In fact, much traction has been built up already. Who would have imagined back in 2005 when this book was first published that someday the topic would occupy a five-part television miniseries airing on a major network and subsequently streamed onto a Walt Disney platform? 36

=== page lii ===

@Pr53 Women’s eNews Recognizes the Protective Mother Issue

Under the direction of Executive Director and Editor-in-Chief, Lori Sokol, PhD, Women’s eNews, the award-winning nonprofit news service that covers issues of concern to women in the United States and around the world, has welcomed editorials on the protective mother issue. Publishing on this news service has been a real boon to protective mothers because Women’s eNews is a well-respected global forum for women to share their views on public policy and social reform.

@Pr54 In February 2023, best-selling novelist Talia Carner wrote a compelling piece for Women’s eNews on why protective mothers, in some cases, may be perfectly justified in defying family court orders. 37 Around the same time, Women’s eNews published Amy Neustein’s editorial on the looming civil rights crisis in the family courts. Neustein described how mothers are routinely deprived of due process and equal protection under the laws and, perhaps most egregious, they are denied their civil rights to self-determination to feed their infants from their own breast. She pointed to a common pattern of mothers being court-ordered, under threat of jail and fines, to expel their breastmilk into a bottle so that the father can have generous and unrestricted long weekends and overnights alone with the infant. 38 In many of these cases, the fathers had been absent during the pregnancy and birth. They do not pay child support either. Yet, they demand the infant spend solitary time with them, even though it disrupts the infant’s nursing schedule and the mother–child bond.

@Pr55 Women’s eNews would welcome a number of subsequent editorials from Neustein. The pieces looked at family court from various angles. These included a post-mortem examination of a high profile case wherein a New York mother, herself an attorney and former federal prosecutor, took her own life after years of traumatic abuse by the Westchester Family Court; the harsh removal of custody from mothers who had failed to speak eloquently on the witness stand or had become emotional in court upon facing an abusive and controlling ex-spouse or partner who was trying to take their children away from them; the spontaneous formation of the “Mothers’ Vote,” an ad hoc voting bloc

=== page liii === of protective mothers across blue states, red states, and swing states who are united in their family court plight; and the necessity of going outside the judicial branch to another branch of government to seek remedy when the courts as an entirety have failed to protect women and children. 39

@Pr56 We noted in our first edition that we had spoken at length to Rita Henley Jensen, then executive director of Women’s eNews, about the protective mother issue. Ms. Jensen was extremely sympathetic, pointing to the daily calls she was receiving from desperate mothers losing their children in family court. However, since that was twenty years ago, the protective mother movement had not yet acquired a unified voice. Few, if any, articles had been published in Women’s eNews on the protective mother plight. Today, the situation is much different. This preeminent digital news service has



emerged as the premier platform for sharing in depth commentaries on the family court system. Certainly, their wide readership in government and in the private sector will gain insight into what mothers have been experiencing on a daily basis in the American family court system.

## Protective Mother Movement Builds up Traction on the Political Front

@Pr57

As an example of the kind of traction built up on the political front, in 2017, a group of activists from across the country, led by Constance Valentine, founder of the California Protective Parents Association, brought one hundred copies of the first edition of *From Madness to Mutiny* down to Washington, DC, 40 and left copies on the desks of the crucial members of the House of Representatives. Soon thereafter, Ms. Valentine and her co-activists were successful in getting the House to pass a resolution to prioritize child safety in custody and visitation cases. “H.Con.Res. 72,” as it would officially be called, was sponsored by Maryland Congressman Jamie Raskin, along with several of his colleagues, who recognized the urgency of putting forth a resolution to affirm the importance of child safety during family court litigation. 41

@Pr58

==== page liv ==== Although the Resolution passed in 2017–2018, it left open the possibility of taking the matter, albeit sometime later, to its next level. Written into the Resolution was a suggestion/provision for a full Congressional investigation of the family courts that have been proven to show a menacing, baleful and sinister effect on the welfare of children because they habitually turn innocent children over to the abusive parent, while forcing the non-offending mother to stand by and watch her children suffer, and sometimes die, from heinous abuse or neglect. Indeed, when that next step is reached, the family court backlash against protective mothers will finally be given a front-row seat on Capitol Hill—and lawmakers will listen attentively.

@Pr59

In March 2022, President Biden signed into law the “Keeping Children Safe From Family Violence Act” (commonly referred to as “Kayden’s Law,” named after a seven-year-old Bucks County girl (Kayden Mancuso) murdered by her abusive father during a court-ordered unsupervised visit with the child. Meier, Pollack, and colleagues produced assiduous research to impress upon Congress the need for a special provision to be included in the reauthorization of VAWA (Violence Against Women Act) so as to protect vulnerable children from injury and death at the hands of the abusive father. Seven states, led by Colorado as the flagship state, 42 have already enacted Kayden’s Law, in whole or in part. They include Colorado, Utah, California, Tennessee, Maryland, Pennsylvania, 43 and Arizona. Connecticut is now close to enactment as well. Whilst many more states need to join this effort, the states that have taken the lead clearly demonstrate the power and force of federal legislation in inspiring states to enact laws to protect children in custody battles from being subjected to injury and death at the hands of a parent with a known history of spousal abuse and domestic violence, particularly when tied to federal funding.

@Pr60

While the effects of VAWA have evidently trickled down to the state level, individual states have, similarly, on their own initiated legislation in response to tragic deaths of children in their state. For example, in 2023, several New York senators co-sponsored “Kyra’s Law,” which was named after a two-year-old Long Island girl forced under court order to have an extended visit with her violent father in Virginia who ==== page lv ==== fatally shot her while she slept. “Kyra’s Law” emphasizes the importance of giving sufficient evidentiary weight to claims of domestic violence when determining the custodial and visitation arrangements for a child. The bill stresses that keeping a child safe from a parent with a history of violence should be the first priority of the family courts. Although many of these state bills, such as Kyra’s Law, have not yet been able to gain the full support of both state-legislative houses needed for passage into law, the passionate commitment of a handful of outstanding legislators has, nevertheless, been propitious for committee passage, which gives reason for hope that such bills will eventually make it to the floor.

@Pr61

On the whole, this second edition of *From Madness to Mutiny* is being written at an auspicious juncture in women’s history. We are witnessing a collective uprising as mothers, advocates, and scholars unanimously urge for an end to violence (both personal and institutional) against women and children in the family courts across the globe. As demonstrated in the previously discussed United Nations Human Rights Office of the High Commissioner study, the family courts have become emblematic of the ghastly violence against women and children at every phase of the judicial process. And the mothers are determined to no longer stand silent in the face of such atrocities—both now and in the future.

@Pr62

## SEVERE MISTREATMENT OF BLACK, INDIGENOUS, AND PEOPLE OF COLOR MOTHERS IN THE FAMILY COURT

### PROTECTIVE MOTHERS SUFFER TWO FOLD IN THE FAMILY COURTS

In the new material provided as supplements to a number of the chapters from the first edition, we examine in detail the mistreatment meted out to Black, Indigenous, and People of Color (BIPOC) mothers in the family courts. Although we had presented some compelling material in the first edition showing, for example, the jailing of a BIPOC mother from Brooklyn at the caprice of the family court judge, we hadn’t examined the family courts and the child welfare system from

a racial perspective per se. Now that we have, we can show that in the closed and claustrophobic world of family courts racism flourishes and is given new life, adding undoubtedly to the execrable mistreatment already meted out to protective mothers.

## Black, Indigenous, and People of Color Mothers Suffer Racial Discrimination on Several Fronts

First, BIPOC mothers are slandered by name-calling in the family courts. In addition to the routine psychiatric name-calling directed at protective mothers (“disturbed,” suffering from “personality disorders,” “narcissistic,” “grandiose,” etc.) women of color shoulder the extra burden of having racial epithets hurled at them. For example, in the Brooklyn Family Court, a Latino mother, who was also a police officer, pleaded with the family court judge for the protection of her five-year-old girl from acts of sodomy at the hands of the father. The father had forced himself on his daughter during an overnight visitation and the child came back hysterical, crying how she “almost choked.” But when the mother made entreaties to Brooklyn Family Court Judge Leon S. Deutsch (now deceased) to protect her child, he became enraged. Bellowing at the mother, he called her “an hysterical Hispanic!” Although the term “Hispanic” is not much used anymore, Deutsch was an older male, Caucasian judge, whose vocabulary reflected an earlier era and his cultural background. As such, he drew from his arsenal of derogatory and discriminatory language to assail this protective mother who had no other agenda in mind than to protect her young, helpless daughter from the brutalities of sexual assault and sodomy at the hands of her abusive father.

Second, BIPOC mothers are more likely to be incarcerated for contempt of court than their Caucasian counterparts, albeit on unsubstantiated grounds. Interestingly, when comparing the incidence rate of mere “threats” of contempt of court (as opposed to acting on those threats by jailing mothers), we did not find a higher incidence of threats made against the BIPOC mother. For example, both demographic groups of mothers are equally threatened by family court judges with contempt of court if they would so much as “speak” to anyone (and sometimes this includes parents and/or siblings) about their family court proceeding. 44 But, when it comes to actually jailing mothers, BIPOC mothers are incarcerated more often than Caucasian mothers, which is very much in keeping with the stats across the general population that show a much higher percentage of incarceration among people of color.

Third, when family courts strip a BIPOC mother of custody and then orders supervised visitation between the mother and her child (“supervision” is used so as to prevent the mother and child from speaking about abuse, sexual and otherwise, committed by the father, and it also functions as a hedge against the child who may initiate discussion in making new disclosures of abuse), the mother is often forced to see her child at the local police station, instead of at a court-contracting visitation setting, as described in the next section. Interestingly enough, a judge’s ordering of supervised visits at the police station is not always contingent on whether or not the BIPOC mother would have the finances to pay the visitation supervision fees held in a private setting. In studying the family court backlash against protective mothers for nearly four decades, we have never ever seen Caucasian mothers ordered into a police setting to see their children. Such arrangements are appalling, and they naturally have injurious effects on BIPOC mothers and their children.

When children see their mothers in the police station, they naturally associate trepidation and fear with those visits. As they sit in this sterile setting, surrounded by men and women in uniform—clad with gun-filled holsters and handcuffs—they often cannot relax on the visit with their mother. BIPOC families have grown to fear police because they are often the target of police harassment (sometimes tragically leading to injury and death), whereas Caucasian families are more likely to view police as people to whom they can appeal for help. Forcing a BIPOC mother to see her child at a police station revives the long-standing trauma for people of color who try their very best to avoid contact with police altogether, and for good reason. Moreover, a child seeing that their mother must be supervised in a police setting will understandably think their mother did something terribly wrong, otherwise why would she need to be monitored at a police station? In short, in as much as it is common for trepidations about arrest to constantly hover over the BIPOC population, arranging visits for the mother at a police station is wholly destructive to the mother–child relationship. Any angst that the mother feels sitting in a police station can be transferred to the child, making the visits uncomfortable (and often traumatic) for both mother and child.

We followed a case in which a Bronx Family Court judge had ordered the mother to have her visits with her four-year-old daughter (who was sexually abused by the father) at the police station. The mother had presented medical evidence to the court to substantiate the abuse, but the judge refused to listen. The child’s pediatrician had backed up the credible evidence of abuse. And although the child herself gave narrative accounts of how she was defiled, neither the law guardian nor the judge heeded the mother’s pleas to protect her child. The judge, instead, stripped the mother of custody and transferred the custody of the very young girl to the father. The mother held a secretarial position at a Fortune 500 company. So, she could have paid for visitation supervision at a private setting, but the judge forced this BIPOC mother to see her child at the police station instead. This was the only venue she would allow for the mother to have visitation with her child. The mother remarried, a lawyer in fact, and continued to fight for her child.

Sadly, her new husband, despite all his motions to the Appellate Division, was unsuccessful in vacating the draconian visitation arrangement at the police station, as well as in overturning the custody award to the sexually abusive father.

The mother, worn down and defeated by these horrid conditions, was unable to continue her life as a middle-class wife married to a young, aspiring lawyer. Her marriage fell apart and she moved in with a relative down South. Her daughter remained up North. When we asked her husband about whether racism had played a role in the case, he didn't hesitate for a moment. He exclaimed, "For sure . . . and throughout the entire case!"

@Pr69 Fourth, whereas family courts are weaponized against protective mothers, those who are BIPOC are sometimes precluded from the court process altogether, and that can leave the mother with no redress at all. For example, a Black special education teacher living in Georgia was === page lix === told last year that she could not even have a hearing before a judge because there are "no available transcribers." This was untrue—the same Georgia court had made itself available to hear cases brought by Caucasian mothers. Instead, this teacher was shunted to a mediator in lieu of a judge, as the court fell back on its lame excuse that there were no court reporters available. The mediator hastily rushed the case of this Georgia mother, sending her sexually abused seven-year-old daughter right into the hands of an abuser, and subsequently terminated the mother's visitation privileges with her daughter.

@Pr70 The mediator made this rash decision to cut off the mother's visits with her daughter purely based on hearsay evidence provided by the father. The mother could not rebut this evidence because she had been denied access to the courts. A year later, the mother has still been denied a hearing before a judge, and she still cannot see her child. The child suffers from a congenital disease that has required multiple hospitalizations. The mother, who had been at her daughter's side throughout all these hospitalizations, was now barred from seeing her daughter because the mediator cut off her visits based on the hearsay evidence supplied by the father. Most tragically, when the visits were cut off, the child would soon need another hospitalization. Admitted to Philadelphia Children's Hospital to receive blood transfusions and dialysis, the BIPOC mother was forbidden to come to the hospital to see her daughter. Speaking to one of the authors, she justifiably said she feared "she'd never see her daughter again on earth."

## @Pr71 UNSAVORY "BUSINESS MODEL" TAKES HOLD IN THE FAMILY COURTS

### The New Economic Realities of the Family Courts—and How It Affects Protective Mothers

The new business paradigm found in the family court system today forces mothers into accepting services at court-contracting agencies, such as those that provide visitation supervision. For context, mothers have traditionally been asked to pay for services ordered by the === page lx === court. For example, judges for years have been ordering mothers to pay for a court-appointed custody evaluation, costing on average \$15,000 for the evaluation and the ensuing report made to the court. Today, however, mothers must pay, in addition to the custody evaluation, fees for the visitation center facility to monitor their visits with their children. Often paired together with the costs of supervised visitation is the judge's mandate that, as a precondition for visitation privileges, the mother must go into "therapy" with a court-approved mental health practitioner, whose sole purpose is to disabuse the mother of their "mis-perceptions/delusions" about the abuse their children have suffered, even in the face of credible evidence, at the hands of the father.

@Pr72 Often these costs are so prohibitively expensive to the mother that she will stipulate to custody and visitation arrangements—undoubtedly prejudicial to her—merely to be relieved of paying such costly visitation supervision fees that she can ill afford. Such a set up potentiates extortion of the mother's rights to custody of her child as she will be forced to "agree" to unfair custody terms that will place her child at risk just to relieve herself of the onerous financial burden of paying for weekly visitation supervision. As a matter of fact, the way that many family court visitation programs legitimate their charging of protective mothers is that they claim to maintain a (discretionary) sliding scale. However, in practice, while these visitations centers subsidize the costs for low-income families, such as in cases of inadequate guardianship where children go hungry, miss school, and receive no medical care, they charge the middle-class protective mother at full rate.

## @Pr73 Court-Ordered Visitation Used to Prevent the Child's Disclosures from Investigation

When the courts order supervised visitation for the mother, the "supervision" is used for two purposes: first, to prevent the mother and child from speaking about sex abuse committed by the father; and, second, to act as a deterrent against the child initiating discussion with the mother in making new disclosures of abuse. Consequently, as we have seen over and over again, if the child does make a new disclosure, and === page lxi === many of them will because child molestation is a recidivistic crime, the court-appointed visitation monitor is poised to discredit the mother by denying that such disclosures were made in the first place. Regrettably, supervision monitors cannot act independently in writing up such new disclosures made by the child because the centers receive all their referrals from the family courts entirely. Consequently, they are chary to antagonize a judge who has already labeled the mother a "parental alienator" and is hence closed-minded about the abuse. As a whole, such a court "business model" is, for obvious reasons, deeply flawed and counterproductive at best, and inherently deceitful and venal at worst. Yet, it flourishes in the family court system. What follows is an elucidation of just how well these visitation centers are faring financially in today's family courts. 45

## Visitation Centers Impose Undue Financial Hardship on Mothers

First, the visitation supervisor often works for just a fraction above minimum wage (\$16 an hour) to maybe a maximum of \$50 an hour. Nonetheless, the mother is charged about \$140 to \$160 per hour for the visit with her child, appropriating the bulk of the hourly fee to the visitation center. Supervised parents are prohibited from engaging relatives or friends to supervise their visits, which would certainly relieve most mothers an onerous financial burden. The reason given for this is that the courts must “monitor” and “regulate” these visits, wherein visitation supervisors are obligated to write regular progress reports to the court. If one considers, on average, that mothers will be given four hours of supervised visitation per week, sometimes divided into two visitation sessions, the weekly costs add up very quickly.

@Pr75 Second, most court-contracting visitation centers require “orientation” fees to be paid by the supervised parent up front before the visits can be arranged by the visitation facility. Orientation fees can range anywhere from \$150 to \$450, depending on the region of the country where the visitation centers can be found. During these orientation sessions, the mother is told that her behavior will be closely watched. They are cautioned that notes will be taken on their visits and that the supervisor will be reporting regularly to the judge. What is at stake is certainly not an appraisal of how well the mother relates to the child (as no one has ever accused protective mothers of being deficient in nurturing and loving their children), but whether indeed she “talks against” the father to the child or whether she gets “angry” at the father if the child should make a new disclosure of sexual abuse.

## Visitation Centers Impose Punitive Conditions on Mothers and Children

@Pr76 Mothers are not only restricted in what they can say to their children, but they are also enjoined from normal mother-child activities. For example, they are warned not to bring any food or drinks during their visits with their children, as that can create a burden for the visitation facility in cleaning up afterwards.

@Pr77 In a recent Manhattan Family Court case, the protective mother was cautioned during her orientation session with the visitation center not to bring any gifts for her five-year-old girl because the law guardian and the father’s attorney felt that would be a way of “winning” the child’s loyalty to the mother, which would have been prejudicial to the father. In fact, in this case, once the visitation supervisor showed sympathy for the mother and urged the court to allow the child to spend overnights with the mother, unsupervised of course, the visitation supervisor was removed from the case and replaced by another supervisor, who was tepid toward the mother at best. Similarly, in a Brooklyn case, the mother was punished with a suspension of her visits because she bent her head down and whispered “I love you” in the ear of her precious six-year-old daughter sitting on her lap. When her visits were restored months later, the judge issued an order forbidding the protective mother from “whispering” to her child; to enforce that order, the visitation supervisors never allowed the young child to sit on the mother’s lap again.

## ==== page lxiii ==== Mothers Must Pay for Court-ordered “Therapy” to Visit Their Children

@Pr78 Unfortunately, the costs to the protective mother do not end here. As previously mentioned, in addition to paying for her supervised visitation, and for the orientation at the visitation center, the mother must pay for “therapy” as well. Such court-ordered therapy sessions serve as a condition that the mother must meet to have visitation with her child. These are usually weekly sessions and sometimes they are twice a week. The therapist is then ordered to make regular reports to the court and to the visitation center on the progress made in those sessions with the mother—effectively using those sessions to disabuse the mother of the fact that her child had been sexually abused by the father: in other words, “gaslighting” the mother until she starts to doubt her own sanity. The average cost of those “therapy” sessions paid by the mother is \$150 to \$200. And those therapy sessions must continue for as long as the mother has visitation with her child. When adding the therapy costs to the visitation supervision costs, the protective mother is burdened with an average of \$750 to \$800 per week to see her child.

## Family Court Arrogated by “Ransom” Business Model Spanning in Many Directions

@Pr79 As shown, taking a child away from a mother without justification and then forcing her to pay to see her child is de facto tantamount to ransom. And previously discussed, this is a relatively new phenomenon, which was not as systematic and routinized when we compiled our research for the first volume. We have detected another scenario in family court in recent times that likewise follows the ransom paradigm. To wit, children are wrenched from their mothers without a hearing and without any evidence before the court. The mothers are then ordered to pay for an expensive custody evaluation. Having already lost custody, the mothers are certainly in no position to refuse—what other choice do they have?

@Pr80 ==== page lxiv ==== This practice of wrenching first and then later performing an evaluation—in essence, a “fishing expedition” to justify an unwarranted removal—bears the indicia of ransom. Let’s look at this process more closely for a moment.

In the past, children primarily stayed with the mother—the primary caregiver—until the court-appointed custody evaluator submitted their report to the court. Only after a full trial wherein the evaluator testified and was cross-examined did the judge then make a custody determination in the form of a written decision. But today, the courts instead remove the child from the mother first, and then order the mother to undergo a court-ordered forensic evaluation. The fees charged for this court-ordered exam are extravagant because the so-called neutral experts nesting in the courts depend on these fees for income. Certainly, had the mother not already lost custody, she may be in a position to object to such a costly custody evaluation of her parenting skills. But by taking her child away first, the mother, aching for the return of her child, will pay any amount to get her child back and that includes a court-ordered evaluation at a profligate rate.

@Pr82 The court’s appointment of a custody expert only after the mother had already lost custody begs the question of how the judge can remove the child from the mother in the first place as no court-ordered evaluation report had yet been before the court? Certainly, these are not mothers with who are active drug users (most don’t even have a history of drug use), or those with DUIs or arrest records of any kind, which might be justification to remove a child from its mother even before a full-fledged parental fitness evaluation was performed. Instead, where is the evidence before the court to warrant taking away the child from the mother if the custody evaluation had not yet been performed?

## @Pr83 Broad Socioeconomic Ramifications of the Ransom Business Model in the Family Courts

This “ransom” business model that exists in the court system today, in which coercion is used to exact payments from mothers after seizing === page lxv === their children without statutorily mandated hearings to justify their actions, has broad economic and social consequences that are important to note. First, middle-class mothers can ill afford the court ransom fees, which are heaped on top of the expenses that mothers pay when they lose custody to the child’s father. They pay, on average, \$2,000 a month for child support, and to that there are the added costs of healthcare insurance and tuition for the child. Besides, the costs to protective mothers may be even greater at times.

@Pr84 For example, in a Long Island, New York, case, the father accused of sex abuse won custody of his two young children and then asked that the mother pay for “childcare services” on top of all the other expenses she was forced to pay. How ironic: when the children were with the mother, her parents babysat while she went to work, and they certainly didn’t charge for their services. But once the mother raised a sex abuse allegation and lost the custody of her children, her own parents were then forbidden to see their grandchildren. As a result, they were now prevented from providing the “free” childcare for the young children that they had been doing all along. Interestingly, although the children had a set of paternal grandparents living nearby, the father wanted the mother to pay out-of-pocket for childcare when he was unable to care for them.

@Pr85 Childcare expenses, sometimes seen by the courts as a legitimate expense to level against the protective mother, drain the mother even further. This example points to the fact that by eviscerating mothers from the lives of their children, the entire family ecosystem is disrupted: maternal grandparents who had hitherto provided free childcare so that their daughters can go to work are now eclipsed from the picture, and the father must find hired help to stand in place of the childcare provided by the maternal grandparents. Moreover, can the love of grandparents be replaced with hired help?

@Pr86 Adding to the disruption of the family ecosystem and family stability is the fact that protective mothers bankrupted by the family courts must depend on their own parents for financial assistance. In preparation of this second edition, we interviewed many protective mothers who have explained how their own parents depleted their retirement === page lxvi === funds to help them shoulder the enormity of costs incurred by the ransom business model ruling the family court system today. And if these mothers were to file for bankruptcy protections, as some of them have, they are still not protected by bankruptcy laws. This is because bankruptcy court takes time, and the mothers can ill afford to let weeks, months, or years slip by while they miss the chance to see their children grow and develop. This happened to a Houston, Texas, mother who filed for bankruptcy but the family court wouldn’t waive the costs of her supervised visits, essentially rendering her bankruptcy protection moot. Sadly, she ran out of funds and lost all contact with her children.

@Pr87 So, the mother is left with little choice: either she gives into the extortion attempt, paying the ransom to see her children, or suffers estrangement from them. Because bankruptcy proceedings do not absolve the financial burden placed on a mother by the family courts (and this is for good reason because if one could discharge child support obligations in bankruptcy proceedings, few fathers would pay support) at the end of the day the protective mother is faced with a Hobson’s choice. Either they impose a financial burden on their own parents to exhaust their retirement accounts, placing them in a dangerously weakened financial position, or they abstain from asking for help and accept never seeing their children again.

@Pr88 As we can see, the sociological consequences of a criminally dysfunctional family court system creates immense suffering and financial insecurity for large segments of the population, most notably retirees who can ill afford to deplete their nest eggs. What this shows is that family court venality has multigenerational repercussions—for the mother, the child, and the grandparents. It is, therefore, a debacle that engulfs multiple generations, weakening the family structure and society for no other reason than to promote an unsavory business model that preys upon battered women and their abused children. In this setting, mothers become enslaved to the family court’s agenda of protecting lucrative enterprises

that nest in the courts in much the same way that serfs had been forced to cater to the malevolent self-interests of the nobleman in medieval times.

=== page lxvii === NARRATIVE CASE HISTORIES AND COURT RECORDS: A LONGI-

@Pr89

## TUDINAL VERSUS A CROSS-SECTIONAL STUDY

### How the Second Edition is Organized, and How It is Distinguished from the First Edition

Most notably, before discussing the differences between the first edition and the second edition, we must point out the following detail. As with the first edition, we have in the second edition, likewise, prioritized the confidentiality of the families whose cases we analyze and dissect. Thus, we refrain from citing names of parents and children when presenting narrative data. In addition, when quoting verbatim from court documents we have redacted the names of parents and children. No docket numbers are given either, even though in some states these records are publicly accessible, because our purpose is to protect the privacy of parents and children. As with the first edition, we have copiously documented each case so that, in the event that either congressional leaders and/or the Department of Justice should decide to pursue an investigation of the scandalous family court system, we will be able to direct them to the mothers whose cases are profiled in this book, as well as to other cases in our database that have not been included in this volume. We find that the court records, when analyzed in painstaking detail, as we have tried to do in this book, provide a sufficiently compelling case for a federal investigation. The harrowing picture presented in mothers' narratives, as relayed to us, are well corroborated by the court record itself. This is why we have consistently pointed to the record as an instantiation of the madness prevailing in the family courts. Admittedly, although this process of reviewing extensive court files is habitually time-consuming, it nevertheless strengthens the terrifying narratives provided by the mothers who are haplessly caught in the vortex of family court litigation. All in all, over the past five years, in preparation of this second edition, we have listened attentively to mothers' narratives as part of our sociological study of the courts, and we have compared those narratives against the case record.

=== page lxviii ===

@Pr90

Our approach in the second edition, however, is distinguished from that of our first edition in several ways.

@Pr91

First, rather than instantiate, as we did in the first edition, the manifold indicia of family court madness and the resultant parental mutiny by pointing broadly to as many protective mother cases illustrative of this phenomena as possible, we concentrate instead on fewer exemplary cases but analyze them in greater detail. We decided on this approach because our first edition, using a substantial number of cases for illustrative purposes, had already laid out the themes pervasive in the family courts (themes which still persist today); therefore, there was no need to repeat that process. Although for this new edition we hone in on fewer cases, albeit in much more depth, those we chose to present in this book from the many that we had reviewed should not be considered an anomaly. On the contrary, they are truly representative of the egregious abuses present in the family courts today. The longitudinal cases presented in this book are, nevertheless, drawn from various regions of the country so that they are not exclusive to one particular geographic area.

@Pr92

Overall, our presentation of a few cases in depth, as opposed to broader analyses of multiple cases, allows us to narrate a case longitudinally and show, for example, how child protective services have become increasingly more aggressive toward protective mothers as their case progresses and, in particular, increasingly reproachful and excoriating toward women of color. Our lengthy case narrative approach also allows us to show, for example, how law guardians have come to comport themselves in such a reckless manner that they arrogantly ignore well-documented criminal histories of fathers that have a direct bearing on the safety and well-being of a child.

@Pr93

Second, although in preparation of both our first and second editions of this work we immersed ourselves in the study of full court files—transcripts, orders to show cause, forensic reports, motions and cross-motions, child protective service petitions/case summaries/safety plans, decisions, appeals, and so forth—for our second edition we had the opportunity to examine the pleadings from the federal courts as well because in recent years many more mothers have brought civil rights actions in federal courts albeit in a futile attempt to seek remedies. === page lxix === they were not able to obtain in the state courts. Even though most, if not all, mothers had their cases dismissed because of collateral estoppel issues and related “abstention” doctrines (e.g., *Younger v. Harris*; *Rooker-Feldman*; “domestic relations exception”) that prevent federal courts from intervening when a matter is before a state court, their federal lawsuit papers nonetheless offered “goldmines” of information, demonstrating the procedural defects/violations pervading their family court cases.

@Pr94

Third, in researching protective mother cases, both for this new edition and for the prior one, we employed a qualitative (rather than a quantitative) research method, our goal for this current work was to use close analytical inspection to identify “patterns of persecution” of protective mothers that could then later be made part of a much larger quantitative study of such phenomena. That is, by dissecting the family court institution and its ravaging effects on mothers and children with the kind of methodological scrutiny we employed, the often-opaque configurations of a woefully malfunctioning arcane system were made visible to us. Among those configurations and sketches that came to the surface were the patterns of

corruption that allow the weaponization of family courts against unsuspecting mothers and children and, perhaps most notably, against women of color.

@Pr95 Fourth, although we instantiated family court madness in our first edition by drawing from a broad demographic mix, which naturally included cases in the BIPOC population, in our new edition we specifically analyze the effects of racism on the mistreatment of mothers by judges and by child protective services.

@Pr96 For example, we provide a comparative analysis of how the same child welfare agency and, moreover the same medical expert handling the case for that agency, demonstrated a harsher attitude toward the BIPOC mother, in which every statement she made or step she took was assessed, alas, in her disfavor. She even felt intimidated by her own attorney (who she later fired), fearing his reaction to her taking her four-year-old daughter to the hospital emergency room after an incident of sexual assault during an overnight visitation with the father. We formed our analytical conclusions based on our examination of court records === page lxx === and child protective service case files and by paying close attention to the narrations of BIPOC mothers and, sometimes, their family members as well. All in all, racial discrimination adds another layer of insult for women of color who are already fighting a blatantly gender-biased family court and child welfare system.

@Pr97 In looking at the racist elements in the cases we studied, we were surprised to see a dearth of professional literature on how racism plays an important role in protective mother cases. That is, racial factors in protective mother cases have not served as an avid topic of study, although it certainly deserves rigorous examination. Furthermore, even though there are a few women of color who have participated in protective mother support groups, they are nonetheless underrepresented in such groups. Thus, we use the opportunity in writing this second edition to give proper attention to the racial factors that are essential in studying family courts' mistreatment of women and children. Basically, when a system descends to its lowest form of human degradation, as evidenced by unrestrained racial bigotry, this must serve as a clarion call that something is terribly awry in the system writ large.

@Pr98 Fifth, although in our first edition we closely examined how bogus mental health theories emerged in family law proceedings, this new volume, which employs a longitudinal approach to the study of protective mother cases, gave us the opportunity to study how a mother's day-to-day existence is turned upside down by the quack mental health theories that have come to haunt her. Mothers, engaged in recording, chronicling, and carefully documenting the sexual violations of their child, have seen how the truth about those crimes can be so easily, almost incredulously, obliterated by the junk science diagnoses ascribed to them. This is perhaps the greatest betrayal of battered women by the family courts.

@Pr99 What's even worse is that, as we show in this second edition, the underpinnings of these new renditions of the archetypical "parental alienation" theories are even more outlandish than their archetypes. Analyzing the fundamentals of Parental Alienation Syndrome (PAS) permutations popularly circulating in the family courts today, we show === page lxxi === how junk science theories aimed at discrediting protective mothers have become increasingly more insidious over the years.

@Pr100 All things considered, we hope this second edition, by copiously documenting the institutional violence perpetrated against women in the family courts, will inspire a major overhaul of our nation's family courts. This requires a concerted effort by the United States Department of Justice, the US Department of Health and Human Services (HHS), and the US House of Representatives and Senate. Inasmuch as state legislatures and state judicial conduct commissions have tried for four decades to reform the courts without success, we sorely need the arm of the federal government. The situation is dire: far too many mothers and children are stuck in the quagmire of venal family courts, and they are paying with their lives.

@Pr101 The second edition is organized as follows: We provide a detailed supplement to the core chapters in the second section of the book: Robed Rage, Lawless Law Guardians, Anti-Social Services, and Mental Health Quackery. In addition, we provide supplementary material to the third section of the book which focuses on reforms. All supplementary material may be found under the subheading "Addendum."